

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR A PARCEL OF LAND BEING SITUATED IN A PORTION OF THE NORTHEAST QUARTER (NE1/4) OF SECTION 1, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, (GENERALLY LOCATED NORTH OF AND ADJACENT TO WEST LINCOLNWAY AND EAST OF AND ADJACENT TO THE BNSF RAILROAD)."

WHEREAS, a public hearing to receive public input and comments on the proposed annexation of the above described property was held before the governing body on November 14, 2011; and

WHEREAS, the governing body finds that the following conditions exist as set forth in Wyo. Stat. §15-1-402:

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town;
- (iii) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with the City of Cheyenne;
- (v) The City of Cheyenne does not own or operate its own electric utility, and its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyo. Stat. §15-1-410;
- (vi) The City of Cheyenne, not less than twenty (20) business days prior to the public hearing required by Wyo. Stat. §15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of Wyo. Stat. §15-1-402 and notice of the time, date and location of the public hearing required by Wyo. Stat. §15-1-405(a).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the above described property meets the requirements for annexation under Wyo. Stat. §15-1-402 (a) (i-vi) and that conditions and required procedures have been met to proceed with annexation of a parcel of land being situated in a portion of the Northeast Quarter (NE1/4) of Section 1, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2011.

RICHARD L. KAYSEN, MAYOR

SEAL:
ATTEST:

CAROL INTLEKOFER, CITY CLERK